

GARE PELMA SECTOR-II COAL
BLOCK (MAHARASHTRA STATE
POWER GENERATION COMPANY
LIMITED)

AREA: - 214.869 HA.

- Encl: - 1. 1st stage approval letter
02/06/2022
2. 2nd stage approval letter
27/01/2023

File No. 8-06/2022-FC
Government of India
Ministry of Environment, Forest and Climate Change
(Forest Conservation Division)

Indira Paryavaran Bhawan,
Jorbagh Road, Aliganj,
New Delhi - 110003.

Dated: 2nd June, 2022

To

The Principal Secretary (Forests),
Government of Chhattisgarh,
Mahanadi Bhavan,
New Raipur (CG).

Sub: Proposal for non-forestry use of 214.869 ha of forest land in favour of M/s Maharashtra State Power Generation Company Limited (MAHAGENCO) for Gare Pelma Sector -II Opencast Coal Mining Project in the Mand Raigarh Coalfield, in District Raigarh (Chhattisgarh) – reg.

Sir,

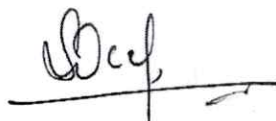
I am directed to refer to the Government of Chhattisgarh's letter no. F-5-26/2021/10-2 dated 19.04.2022 on the above subject seeking prior approval of the Central Government under Section 2 of the Forest (Conservation) Act, 1980 and letter no. Bhu-Praband/Khanij/331-245/1025 dated 10.05.2022 forwarding additional information as sought by the Ministry vide its letter of even number dated 22.04.2022 and to say that the proposal has been examined by the Forest Advisory Committee constituted by the Central Government under Section - 3 of the aforesaid Act.

After careful examination of the proposal of the State Government and on the basis of the recommendations of the Forest Advisory Committee, and approval of the same by the competent authority of the MoEF&CC, New Delhi, the Central Government hereby accords approval for non-forestry use of 214.869 ha of forest land in favour of M/s Maharashtra State Power Generation Company Limited (MAHAGENCO) for Gare Pelma Sector -II Opencast Coal Mining Project in the Mand Raigarh Coalfield, in District Raigarh (Chhattisgarh) subject to fulfilment of the following conditions:

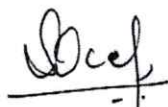
A. Conditions which need to be complied prior to handing over of forest land by the State Forest Department and compliance is to be submitted prior to Stage-II approval

1. Compensatory Afforestation:

- i. The Compensatory afforestation over equivalent non-forest land, shall be raised by the State Forest Department at the project cost. At least 1000 saplings per ha shall be planted over admissible CA land. If this not possible to plant these many seedlings in the identified NFL, the balance seedlings will be planted in degraded forest land as per the prescription of the Working Plan at the cost of the User Agency. Detail of such degraded forest land proposed for afforestation of surplus trees shall be submitted to the Ministry before Stage-II approval along with afforestation scheme, suitability

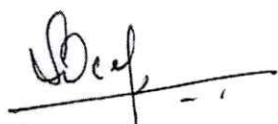


- certificate, KML files, etc. In such cases CA cost will be revised and duly approved by the competent authority and deposited online in the CAF managed by the CAMPA;
- ii. 25% of the CA cost additionally will be spent towards soil and moisture conservation activities in the proposed CA area as per site requirement and deposited in CAF;
 - iii. The cost of compensatory afforestation at the prevailing wage rates as per compensatory afforestation scheme and the cost of survey, demarcation and erection of permanent pillars, if required on the CA land, shall be deposited in advance with the Forest Department by the user agency. The CA will be maintained for 10 years. The scheme may include afforestation of indigenous species with appropriate provision for anticipated cost increase for works scheduled for subsequent years;
 - iv. The non-forest land identified for CA shall be transferred and mutated in favour of the State Forest Department and subsequently notified by the State Government as RF under Section - 4 or PF under Section-29 of the Indian Forest Act, 1927 or under the relevant Section(s) of the local Forest Act before Stage-II approval. A copy of the final Notification shall be submitted along with the compliance of Stage-I approval;
2. The KML files of diverted area, the CA areas, the proposed SMC treatment area and the WLMP area shall be uploaded on the e-Green watch portal with all requisite details prior to Stage II approval;
 3. The User Agency shall transfer online, the Net Present Value (NPV) of the forest land being diverted under this proposal, as per the guidelines issued by this Ministry vide its letters No. 5-3/2011-FC (Vol.) dated 06.01.2022 read with letter dated 22.03.2022. The requisite funds shall be transferred through online portal into National Authority (CAMPA) account of the State Concerned; new NPV guidelines;
 4. Compensatory levies to be realized from the User Agency under the project shall be transferred/ deposited, through e-challan, in to the account of CAMPA pertaining to the State concerned through e-portal (<https://parivesh.nic.in/>);
 5. *Mine is located close to Kelo River flowing in the area. Numbers of mines are operational in the area which may cause threat to hydrological regime viz. Kelo river and its rivulet, therefore, a study to assess the hydrological regimes and cumulative impact of mining and industrial activities being undertaken in the GarePelma area, on the hydrological regimes of area shall be undertaken in consultation with the Water Resource Department and the same shall be submitted along with considered opinion of Water Resource Department of the State before Stage-II approval. Recommendation to be made in the study shall be implemented by the State from the funds to be realized from the agencies, on pro rata basis, working in the area. The user agency shall also keep adequate area, as per the guidelines of DGMS (Director General of Mine Safety), along the bank of River Kelo as intact and no mining should be carried out in this area. Embankment should be constructed to ensure protection of river and its hydrology from the mining.*
 6. A Soil and Moisture Conservation (SMC) work plan to mitigate the impact of the proposed mining activity on the local rivulets (nallah) shall be prepared by the user agency in consultation with the State Forest Department and the same shall be submitted along with Stage-I compliance. Cost of implementation of the provisions of the said Plan will be deposited into the

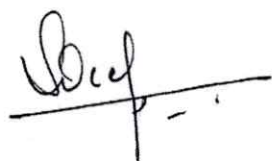

-f-

CAMPA and the same shall be intimated to the Ministry before Stage-II approval.

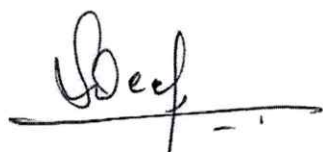
7. *Final Mining Plan, after rectifying the detail of forest area involved in the mining leases and being approved under the Forest (Conservation) Act, 1980, shall be submitted to the Ministry before Stage-II approval.*
8. *Area of green belt proposed by the user agency should be increased to cover maximum possible area under the green belt in the lease area of the agency and a report containing the detail of areas proposed to be kept as green belt should be submitted before Stage-II approval.*
9. Following activities, as per approved plan / schemes, shall be undertaken in the lease area by the User Agency under the supervision of the State Forest Department. Approved scheme/plan shall be submitted to the Ministry along with compliance of Stage-I approval:
 - i. Mitigative measures to minimize soil erosion and choking of stream shall be implemented within a period of three year with effect from the issue of Stage-II clearance in accordance with the approved Plan in consultation with the State Forest Department.
 - ii. Planting of adequate drought hardy plant species and sowing of seeds, in the appropriate area within the mining lease to arrest soil erosion in accordance with the approved scheme;
 - iii. Construction of check dams, retention /toe walls to arrest sliding down of the excavated material along the contour in accordance with the approved scheme;
 - iv. Stabilize the overburden dumps by appropriate grading/benching, in accordance with the approved scheme, so as to ensure that angles of repose at any given place is less than 28°; and
 - v. No damage shall be caused to the top-soil and the user agency will follow the top soil management plan.
10. User agency either himself or through the State Forest Department shall undertake gap planting and soil & moisture conservation activities to restock and rejuvenate the degraded open forests (having crown density less than 0.40), if any, located in the area within 100 meter from outer perimeter of the mining lease. The plan for plantation and SMC activities will be prepared and submitted to MoEF &CC before Stage-II Clearance;
11. The User Agency shall prepare a list of existing village tanks and other water bodies with GPS co-ordinates located within five km from the mine lease boundary. This list is to be duly verified by the concerned Divisional Forest Officer. The User Agency shall regularly undertake desilting of these village tanks and other water bodies so as to mitigate the impact of siltation of such tanks/water bodies. A detailed approved plan for desilting of identified ponds and water bodies to be prepared in consultation with forest department and shall be submitted to MoEF & CC before Stage-II approval;
12. **Safety Zone Management:** Following activities, at project cost, shall be undertaken by the user agency for the management of safety zone as per relevant guidelines issued by the Ministry's guidelines:
 - i. User agency shall ensure demarcation of safety zone (7.5 meter strip all along the inner boundary of the mining lease area), and its fencing, protection and regeneration by erecting adequate number of 6 feet high RCC boundary pillars



- inscribed with DGPS coordinates with barbed wire fencing and deploying adequate number of watchers under the supervision of the State Forest Department;
- ii. Boundary of the safety zone of the mining lease, adjacent to habitation/roads, should be properly fenced by the user agency;
 - iii. Safety zone shall be maintained as green belt around mining lease and to ensure dense canopy in the area, regeneration shall be taken up in this area by the user agency at project cost under the supervision of the State Forest Department;
 - iv. Afforestation on degraded forest land to be selected elsewhere, measuring one and a half times the area under safety zone, shall also be done at the project cost under the supervisions of the State Forest Department. The degraded forest land (DFL) so selected will be informed to the MoEF & CC with shape files before Stage-II approval and afforestation will be done within three years from the date of Stage-II clearance and maintained thereafter in accordance with the approved Plan in consultation with the State Forest Department; and
 - v. The State Government and the user agency shall ensure that safety zone is maintained as per the prescribed norms;
13. The cost of felling of trees shall be deposited by the User Agency with the State Forest Department;
14. *Elephant/Wildlife Management Plans should be revised and prepared keeping in view the locality factors, occurrence of wildlife, management interventions required for areas. State Government may also get the revised Plan verified by an institute of repute. Cost of implementation of the Plan so finalized shall be deposited into State CAMPA and detail of the same along with approved Plan shall be submitted to the Ministry before Stage-II approval.*
15. State Government shall complete settlement of rights, in term of the Scheduled Tribes and Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, if any, on the forest land to be diverted and submit the documentary evidence, along with compliance of Stage-I approval, as prescribed by this Ministry's letter No. 11-9/1998-FC (Pt.) dated 03.08.2009 read with 05.07.2013, in support thereof;
16. *Proposal involves displacement from non-forest land. A copy of approved R&R plan, prepared in consonance with the R&R policy of the State, shall be submitted along with the compliance of Stage-I approval. It shall be ensured that no rehabilitation is proposed on the forest land; and*
17. The compliance report shall be uploaded on **e-portal** (<https://parivesh.nic.in/>).
- B. Conditions which need to be complied on field after handing over of forest land to the user agency by the State Forest Department but the compliance in form of undertaking shall be submitted prior to Stage-II approval:**
1. Legal status of the diverted forest land shall remain unchanged;



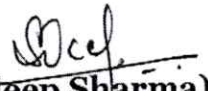
2. At the time of payment of the Net Present Value (NPV) at the present rate, the user agency shall furnish an undertaking to pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India;
3. Trees should be felled in phased manner as per the requirement in the approved Mining Plan with prior permission of concerned DFO;
4. The user agency shall explore the possibility of translocation of maximum number of trees identified to be felled and shall ensure that any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department;
5. The User Agency shall comply with the Hon'ble Supreme Court order on re-grassing, and re-grass the mining area and any other areas which may have been disturbed due to mining to restore them to a condition which is fit for growth of fodder, flora, fauna, etc. in a timely manner;
6. The User Agency shall undertake mining in a phased manner after taking due care for reclamation of the mined over area. The concurrent reclamation plan as per the approved mining plan shall be executed by the User Agency from the very first year, and an annual report on implementation thereof shall be submitted to the Nodal Officer, Forest (Conservation) Act, 1980, in the concerned State Government and the concerned Regional Office of the Ministry. If it is found from the annual report that the activities indicated in the concurrent reclamation plan are not being executed by the User Agency, the Nodal Officer or the concern Addl. Principle Chief Conservator of Forests (Central) may direct that the mining activities shall remain suspended till such time, such reclamation activities area satisfactorily executed.
7. Period of diversion of the said forest land under this approval shall be for a period co-terminus with the period of the mining lease proposed to be granted under the Mines and Minerals (Development and Regulation) Act, 1957, as amended and the Rules framed there-under;
8. The User Agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
9. No labour camp shall be established on the forest land and the User Agency shall provide fuels preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
10. The boundary of the diverted forest land, mining lease and safety zone, as applicable, shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, distance from pillar to pillar and GPS coordinates;
11. The layout plan of the mining plan/ proposal shall not be changed without the prior approval of the Central Government and the forest land shall not be used for any purpose other than that specified in the proposal;
12. The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
13. No damage to the flora and fauna of the adjoining area shall be caused;
14. The User Agency shall submit the annual self-compliance report in respect of the above stated conditions to the State Government, concerned Regional Office and to this Ministry by the end of March every year regularly;
15. Any other condition that the concerned Regional Office of this Ministry may stipulate with the approval of competent authority in the interest of conservation, protection and development of forests & wildlife; and



16. The user agency shall comply all the provisions of the all Acts, Rules, Regulations, Guidelines, Hon'ble Court Order (s) and NGT Order (s) pertaining to this project, if any, for the time being in force, as applicable to the project.
17. Violation of any of these conditions will amount to violation of Forest (Conservation) Act, 1980 and action would be taken as prescribed in para 1.21 of Chapter 1 of the Handbook of comprehensive guidelines of Forest (Conservation) Act, 1980 as issued by this Ministry's letter No. 5-2/2017-FC dated 28.03.2019.

After receipt of compliance report on fulfilment of the conditions mentioned above, the proposal shall be considered for final approval under Section-2 of the Forest (Conservation) Act, 1980. Transfer of forest land shall not be affected till final approval is granted by the Central Government in this regard.

Yours faithfully,



(Sandeep Sharma)

Assistant Inspector General of Forests

Copy to:

1. Principal Chief Conservator of Forest (PCCF) Aranya Bhavan, Sector 19, North Block, New Raipur- 492002 Chhattisgarh.
2. Regional Officer, Integrated Regional Office, MoEF&CC, Naya Raipur
3. The Addl. PCCF & Nodal Officer (FCA), Jail Road, Aranya Bhavan, Raipur.
4. User Agency
5. Monitoring Cell, Forest Conservation Division, MoEF&CC
6. Guard file.

Government of India
Ministry of Environment, Forest and Climate Change
(Forest Conservation Division)

Indira Paryavaran Bhawan
Jor Bag Road, Aliganj
New Delhi - 110003

Dated: 27th January, 2023

To
The Principal Secretary (Forests),
Government of Chhattisgarh
Mahanadi Bhavan,
Nava Raipur

Sub: Proposal for non-forestry use of 214.869 ha of forest land in favour of M/s Maharashtra State Power Generation Company Limited (MAHAGENCO) for Gare Pelma Cector -II Opencast Coal Mining Project in the Mand Raigarh Coalfield, in District Raigarh (Chhattisgarh) – reg.

Madam/Sir

I am directed to refer to the Government of Chhattisgarh's letter no. F-5-26/2021/10-2 dated 19.04.2022 on the above subject seeking prior approval of the Central Government under Section 2 of the Forest (Conservation) Act, 1980 and letter no. Bhu-Praband/Khanij/331-245/1025 dated 10.05.2022 forwarding additional information as sought by the Ministry vide its letter of even number dated 22.04.2022. After careful examination of the proposal by the Forest Advisory Committee, constituted under Section-3 of the said Act, '*in-principle*'/stage-I approval to the proposal under the Forest (Conservation) Act, 1980 was granted vide this Ministry's letter of even number dated 02.06.2022 subject to fulfillment of certain conditions prescribed therein. The State Government has furnished compliance report in respect of the conditions stipulated in the '*in-principle*' approval and has requested the Central Government to grant final approval.

In this connection, I am directed to say that on the basis of the compliance report furnished by the State Government vide letter No. F 5-26/2021/10-2 dated 23.01.2023, ***final/stage-II approval*** of Central Government under Section - 2 of the Forest (Conservation) Act, 1980 is hereby granted for non-forestry use of 214.869 ha of forest land in favour of M/s Maharashtra State Power Generation Company Limited (MAHAGENCO) for Gare Pelma Cector -II Opencast Coal Mining Project in the Mand Raigarh Coalfield, in District Raigarh (Chhattisgarh) subject to fulfillment of the following conditions:

A. Conditions which need to be complied prior to handing over of forest land by the State Forest Department:

- i. The State Government shall ensure that the complete compliance of the FRA, 2006 shall be implemented;
- ii. The KML files of diverted area, the CA areas, the proposed SMC

treatment area and the WLMP area shall be uploaded on the e-Green watch portal with all requisite details.

B. Conditions which need to be complied on field after handing over of forest land to the user agency by the State Forest Department:

i. Legal status of the diverted forest land shall remain unchanged;

ii. Compensatory Afforestation:

- a. The Compensatory afforestation over equivalent non-forest land, extent to the forest land being diverted i.e. 214.869 ha shall be raised by the State Forest Department at the project cost;
- b. At least 1000 saplings per ha shall be planted over admissible CA land. If this not possible to plant these many seedlings in the identified NFL, the balance seedlings will be planted in degraded forest land as per the prescription of the Working Plan at the cost already deposited by the User Agency;
- c. The compensatory afforestation scheme, as approved, shall be implemented by the State Forest Department. The CA will be maintained for 10 years and the CA scheme may include afforestation of indigenous species with appropriate provision for anticipated cost increase for works scheduled for subsequent years;
- d. Compensatory afforestation over equivalent non-forest land, extent to the forest land being diverted, shall be raised by the State Forest Department at the project cost within three years from the date of grant of Stage - II approval;
- e. Soil and moisture conservation should be given prime focus with possible creation of small water bodies and planting shall also be limited and confined to local thorny, fruit bearing species only;
- f. The State Government shall ensure that the User agency through the State Forest Department will do gap planting and soil & moisture conservation activities to restock and rejuvenate the degraded open forests (having crown density less than 0.4), if any, located in the area within 100 meter from outer perimeter of the mining lease

iii. NPV:

- a. The State Government has realized the Net Present Value (NPV) of the forest land being diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 28.03.2008, 24.04.2008 and 09.05.2008 in Writ Petition (Civil) No. 202/1995 and the guidelines issued by this Ministry vide its letter No. 5-3/2007-FC dated 05.02.2009 and guidelines dated 6.01.2022 read with guidelines dated 22.03.2022 through online portal of CAMPA account of the State Concerned. NPV, if any becomes due in future shall be realized in accordance with the

relevant guidelines issued by the Ministry;

- b. The User Agency shall pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India.
- iv. Compensatory levies, if any, realized in future under the extant project, shall be transferred/ deposited, through e-challan, in to the account of CAMPA pertaining to the State concerned through e-portal (<https://parivesh.nic.in/>);
- v. The State Govt. shall ensure that User Agency shall implement the R&R Plan as per the R&R Policy of State Government in consonance with National R&R Policy, Government of India before the commencement of the project work and implementation. The said R&R Plan will be monitored by the State Government/Regional Office of MoEF&CC along with indicators for monitoring and expected observable milestones;
- vi. The State Government shall ensure that the measures recommended by the Water Resource Department Government of Chhattisgarh in the study report will be implemented for conservation of hydrological regime viz. Kelo river and its rivulet river by the mining.
- vii. The State Government shall ensure that Soil and Moisture Conservation (SMC) work plan to mitigate the impact of the proposed mining activity on the local rivulets (nallah) will be implemented by the user agency in consultation with the State Forest Department at the cost of UA;.
- viii. The State Government shall ensure that the area of green belt proposed by the user agency should be increased to cover maximum possible area under the green belt in the lease area of the agency as per the report provided by the UA;
- ix. The State Government shall ensure that the User Agency will implement the approved plan for de-silting of identified ponds and water bodies of the listed villages tanks and other water bodies located within five km from the mine lease boundary. The User Agency shall regularly undertake de-silting of these village tanks and other water bodies so as to mitigate the impact of siltation of such tanks/water bodies.
- x. The State Government shall ensure that the vetted Elephant/Wildlife Management Plans from the IIFM Bhopal shall be implemented in view the locality factors, occurrence of wildlife, management interventions required for areas.
- xi. Following activities, as per approved plan/schemes, shall be undertaken in the lease area by the User Agency under the supervision of the State Forest Department:
 - a. Mitigative measures to minimize soil erosion and choking of stream shall be implemented within a period of three year with

effect from the issue of Stage-II clearance in accordance with the approved Plan in consultation with the State Forest Department;

- b. Planting of adequate drought hardy plant species and sowing of seeds, in the appropriate area within the mining lease to arrest soil erosion in accordance with the approved scheme;
 - c. Construction of check dams, retention /toe walls to arrest sliding down of the excavated material along the contour in accordance with the approved scheme;
 - d. Stabilize the overburden dumps by appropriate grading/benching, in accordance with the approved scheme, so as to ensure that angles of repose at any given place is less than 28° ; and
 - e. No damage shall be caused to the top-soil and the user agency will follow the top soil management plan.
- xii. Safety Zone Management: Following activities, at project cost, shall be undertaken by the user agency for the management of safety zone as per relevant guidelines issued by the Ministry's guidelines:
- f. User agency shall ensure demarcation of safety zone (7.5 meter strip all along the inner boundary of the mining lease area), and its fencing, protection and regeneration by erecting adequate number of 6 feet high RCC boundary pillars inscribed with DGPS coordinates with barbed wire fencing and deploying adequate number of watchers under the supervision of the. State Forest Department;
 - g. Boundary of the safety zone of the mining lease, adjacent to habitation/roads, should be properly fenced by the user agency;
 - h. Safety zone shall be maintained as green belt around mining lease and to ensure dense canopy in the area, regeneration shall be taken up in this area by the user agency at project cost under the supervision of the State Forest Department;
 - i. Afforestation on degraded forest land to be selected elsewhere, measuring one and a half times the area under safety zone, shall also be done at the project cost under the supervisions of the State Forest Department. The degraded forest land (DFL) so selected will be informed to the MoEF & CC and afforestation will be done within three years from the date of Stage-II clearance and maintained thereafter in accordance with the approved Plan in consultation with the State Forest Department; and
 - j. The State Government and the user agency shall ensure that safety zone is maintained as per the prescribed norms.
- xiii. Period of diversion of the said forest land under this approval shall be for a period co-terminus with the validity of lease granted under the MMDR Act, 1957 as amended time to time;

- xiv. The User Agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
- xv. No labour camp shall be established on the forest land and the User Agency shall provide fuels preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- xvi. The boundary of the diverted forest land, mining lease and safety zone, as applicable, shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, distance from pillar to pillar and GPS coordinates;
- xvii. The User Agency shall undertake mining as per approved mining plan and the concurrent reclamation plan as per the approved mining plan shall be executed and the User Agency from the very first year, and an annual report on implementation thereof shall be submitted to the Nodal Officer, Forest (Conservation) Act, 1980, in the concerned State Government and the concerned Regional Office of the Ministry. If it is found from the annual report that the activities indicated in the concurrent reclamation plan are not being executed kv the User Agency, the Nodal Officer or the Addl. Principal Chief Conservator of Forests (Central) may direct that the mining activities shall remain suspended till such time, such reclamation activities area satisfactorily executed.
- xviii. The layout plan of the mining plan/ proposal shall not be changed without the prior approval of the Central Government and the forest land shall not be used for any purpose other than that specified in the proposal;
- xix. The State Govt. and the user agency shall ensure that the forest land shall not be used for any purpose other than that specified in the proposal;
- xx. The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
- xxi. No damage to the flora and fauna of the adjoining area shall be caused;
- xxii. The cost of felling of trees shall be deposited by the User Agency with the State Forest Department. Trees should be felled in phased manner as per the requirement in the approved Mining Plan with prior permission of concerned DFO;
- xxiii. The user agency shall explore the possibility of translocation of maximum number of trees identified to be felled and shall ensure that any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department;
- xxiv. The User Agency shall comply with the Hon'ble Supreme Court order on re-grassing, and re-grass the mining area and any other areas which

may have been disturbed due to mining to restore them to a condition which is fit for growth of fodder, flora, fauna, etc. in a timely manner;

- xxv. Any other condition that the concerned Regional Office of this Ministry may stipulate with the approval of competent authority in the interest of conservation, protection and development of forests & wildlife;
- xxvi. The user agency shall comply all the provisions of the all Acts, Rules, Regulations, Guidelines, Hon'ble Court Order (s) and NGT Order (s) pertaining to this project, if any, for the time being in force, as applicable to the project; and
- xxvii. Violation of any of these conditions will amount to violation of Forest (Conservation) Act, 1980 and action would be taken as prescribed in para 1.21 of Chapter 1 of the Handbook of comprehensive guidelines of Forest (Conservation) Act, 1980 as issued by this Ministry's letter No. 5-2/2017-FC dated 28.03.2019.
- xxviii. The User Agency shall submit the annual self -compliance report in respect of the above stated conditions to the State Government, concerned Regional Office and to this Ministry by the end of March every year regularly;

Signed by Dheeraj Mittal

Date: 27-01-2023 19:47:02

Yours faithfully,
Sd/-

(Dr. Dheeraj Mittal)

Assistant Inspector General of Forests

Copy to:

1. PCCF (HoFF), State Forest Department, Government of Chhattisgarh, Nava Raipur.
2. APCCF cum Nodal Officer (FCA), State Forest Department, Government of Chhattisgarh, Nava Raipur.
3. Regional Officer (Central), Integrated Regional Office of MoEF&CC at Raipur.
4. User Agency.
5. Monitoring Cell, FC Division, MoEF&CC, New Delhi.